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Case Number: 25NNCV09069 Hearing Date: July 29, 2026 Dept: E

Hearing Date: 07/29/2026 – 8:30 a.m.

Case No: 25NNCV09069

Trial Date: UNSET

Case Name: REBECA MINAEIAN, by and through her Successor-in-Interest, Vahik Minayian; VAHIK MINAYIAN, individually v. LAC VERDUGO OPERATIONS, LLC, dba Glendale Post Acute Center; and DOES 1-200, inclusive

TENTATIVE

RULING ON MOTION TO COMPEL ARBITRATION

RELIEF REQUESTED

Defendant, LAC

Verdugo Operations LLC, dba Glendale Post Acute Center, petitions for an order compelling Plaintiffs to arbitration, and for an order to stay the Superior Court matter.

Defendant moves

pursuant to the Federal Arbitration Act, or in the alternative, CCP §§ 1281, 1281.2, 1281.4, and 1290 et seq.

PROCEDURAL

Moving Party: Defendant, LAC Verdugo Operations LLC,
dba Glendale Post Acute Center (Defendant, Movant, Verdugo, or Glendale)

Responding Party: Plaintiffs – (1) Rebeca Minaeian, by and through her Successor-in-Interest, Vahik Minayian; and (2) Vahik Minayian, individually (collectively Plaintiffs)

Moving Papers: Notice/Motion; Proposed Order;

Opposing Papers: Opposition; Evidentiary Objections to Declaration of Jaqueline Laus; Declaration of Steven C. Peck; Declaration of Vahik Minayian

Reply Papers: Reply

BACKGROUND

Plaintiffs – (1) Rebeca Minaeian, by and through her Successor-in-Interest, Vahik Minayian, and (2) Vahik Minayian, individually – filed the instant action on 12/18/2025.

Plaintiffs' complaint was brought against Defendants – (1) LAC Verdugo Operations, LLC, dba Glendale Post Acute Center and (2) Does 1 – 200, inclusive.

On 3/10/2026, Doe 1 was named as Burbank Healthcare, LLC.

Plaintiffs' complaint lists four causes of action – (1) Elder Abuse (Pursuant to Welfare & Institutions Code §§ 15600, et seq.), (2) Negligence, (3) Violation of Residents Rights (Pursuant to Health and Safety Code § 1430(b)), and (4) Wrongful Death.

Plaintiffs' complaint indicates that the first three causes of action are brought "By Vahik Minayian, as Successor-in-Interest."

Plaintiffs' complaint indicates that the fourth cause of action is brought "By Vahik Minayian, Individually."

The first, second,
and fourth causes of action are brought against all Defendants and Does.

The third cause of
action is brought against Glendale and Does.

Further,
Plaintiffs' complaint indicates that Vahik/Plaintiff is decedent/Plaintiff/Rebeca's
surviving son. (Compl., ¶ 2.)

Defendant, LAC
Verdugo Operations, LLC, dba Glendale Post Acute Center, filed the instant
motion to compel arbitration on 3/13/2026.

LEGAL STANDARD

Code of Civil Procedure,
section 1281.2, governing orders to arbitrate controversies, provides in
pertinent part:

On petition of a party to an arbitration
agreement alleging the existence of a written agreement to arbitrate a
controversy and that a party to the agreement refuses to arbitrate that
controversy, the court shall order the petitioner and the respondent to
arbitrate the controversy if it determines that an agreement to arbitrate the
controversy exists, unless it determines that:

(a) The right to compel arbitration
has been waived by the petitioner; or

(b) Grounds exist for rescission of
the agreement.

(CCP, § 1281.2(a)-(b).)

The party seeking
arbitration bears the initial burden of demonstrating the existence of an
arbitration agreement. (Pinnacle Museum Tower Assn. v. Pinnacle Market
Development (US), LLC (2012) 55 Cal.4th 223, 236.) In ruling on a
motion to compel arbitration, the court must first determine whether the

parties actually agreed to arbitrate the dispute, and general principles of California contract law help guide the court in making this determination. (Mendez v. Mid-Wilshire Health Care Center (2013) 220 Cal.App.4th 534, 541; Victoria v. Superior Court (1985) 40 Cal. 3d 734, 835.) Once the Court concludes an arbitration agreement exists, it must then consider whether the agreement covers the claims at issue. (Omar v. Ralphs Grocery (2004) 118 Cal.App.4th 966, 960.) Even when the FAA applies, “interpretation of the arbitration agreement is governed by state law principles.” (Hotels Nevada, LLC v. Bridge Banc, LLC (2005) 130 Cal.App.4th 1431, 1435.)

TENTATIVE RULING

Preliminary

Both parties’ papers submitted for the instant hearing are unhelpful to the Court.

The parties’ papers are lazily written because they fail to address many relevant legal issues that arise for this hearing.

Further, the Court notes that on 3/10/2026, Doe 1 was named as Burbank Healthcare, LLC.

Neither party explains their papers with respect to Burbank Healthcare, LLC. Therefore, at the hearing, the parties are to address this motion’s significance, or lack thereof, with respect to Burbank Healthcare, LLC.

A. Existence of Agreement as to Plaintiff, Rebeca Minaeian, by and through her Successor-In-Interest, Vahik Minayian [Not, Vahik Minayian, Individually] – First, Second, and Third Causes of Action

A. Causes of Action

Plaintiffs’ complaint indicates that the first three causes of action are brought “By Vahik Minayian, as Successor-in-Interest.”

Plaintiffs'

complaint indicates that the fourth cause of action is brought "By Vahik Minayian, Individually."

To the Court's

understanding, Plaintiffs' first three causes of action are brought by Plaintiff, decedent, Rebeca Minaeian, by and through her Successor-in-Interest, Vahik Minayian; whereas, Plaintiff's fourth cause of action is brought by Plaintiff, Vahik Minayian, individually.

The Court points

this out because this tentative ruling operates under the aforementioned assumption. If the Court's assumption is incorrect, then the parties are to address this at the hearing.

A. Existence of Agreement as to

Plaintiff, decedent, Rebeca Minaeian – First, Second, and Third Causes of Action

It appears that

Plaintiffs are indicating that the first three causes of action are Plaintiff, decedent, Rebeca Minaeian's (Rebeca) causes of action.

Therefore, until

otherwise noted, the Court first addresses whether or not Plaintiff, decedent, Rebeca Minaeian's, first three causes of action can be compelled to arbitration.

Defendant, LAC

Verdugo Operations, LLC, dba Glendale Post Acute Center, moves to compel Rebeca's claims to arbitration based on two documents – (1) the "Resident - Facility Arbitration Agreement" and (2) the Jaqueline Laus Declaration – attached within Defendant's motion. [Both documents are located within Defendant's motion.]

As a general rule,

the right to arbitration depends on a contract, and a party can be compelled to submit a dispute to arbitration only if the party has agreed in writing to do so. (Matthau v. Superior Court (2007)

151 Cal.App.4th 593, 598.)

The policy favoring arbitration does not eliminate the need for an agreement to arbitrate and does not extend to persons who are not parties to an agreement to arbitrate. (Matthau v. Superior Court (2007) 151 Cal.App.4th 593, 598 citing Boys Club of San Fernando Valley, Inc. v. Fidelity & Deposit Co. (1992) 6 Cal.App.4th 1266, 1271.)

Here, Exhibit A, attached within Defendant's motion, is a "Resident – Facility Arbitration Agreement" (Arbitration Agreement).

With respect to Defendant's [Facility/Verdugo/Glendale] signature on the Arbitration Agreement, a facility representative (Jaqueline Laus) e-signed the Arbitration Agreement on 11/6/2024.

Problematic here is that the Arbitration Agreement is not signed by Plaintiff/decedent/Rebeca, but is instead e-signed by "Vahik Minaiyan" on 11/7/2024. (See Def. Mot., Ex. A, p. 2.)

Vahik e-signed (two times in two locations within the Arbitration Agreement) above a signature line that states, "Signature on behalf of the Resident and as an Individual[.]" (Def. Mot., Ex. A, p. 2.) The Arbitration Agreement indicates that Vahik e-signed both times on 11/7/2024. (Id.)

Thus, the issue implicated here is whether or not Vahik's e-signatures in the Arbitration Agreement on 11/7/2024, that were allegedly made on behalf of the resident [Rebeca], can compel Rebeca's claims to arbitration when Rebeca did not sign the Arbitration Agreement herself.

Whether or not Vahik's [Rebeca's son] e-signatures can compel Plaintiff/Rebeca/decedent to arbitration is not an easy or straightforward question for the Court because both parties' papers fail to address several pertinent legal issues.

A. Existence of Agreement as to Rebeca – First, Second, and Third Causes of Action – Theory to Compel? Agency?

One of the reasons

it is difficult for the Court to determine if Vahik's e-signatures can compel Rebeca to arbitration is because Defendant's motion does not make it entirely clear as to the theory/legal standard under which Defendant can compel arbitration when decedent/Rebeca/Plaintiff did not sign the Arbitration Agreement herself.

Jensen explains that

there are circumstances in which persons who have not signed an agreement to arbitrate can be bound to do so:

[A]s a general rule, "[t]he right to arbitration depends on a contract, and a party can be compelled to submit a dispute to arbitration only if the party has agreed in writing to do so." (Matthau v. Superior Court (2007) 151 Cal.App.4th 593, 598, 60 Cal.Rptr.3d 93 (Matthau).) "Even the strong public policy in favor of arbitration does not extend to those who are not parties to an arbitration agreement or who have not authorized anyone to act for them in executing **802 such an agreement." (County of Contra Costa v. Kaiser Foundation Health Plan, Inc. (1996) 47 Cal.App.4th 237, 245, 54 Cal.Rptr.2d 628 (Contra Costa).)

Nevertheless, there are circumstances

under which persons who have not signed an agreement to arbitrate are bound to do so. One treatise has stated that there are "six theories by which a nonsignatory may be bound to arbitrate: '(a) incorporation by reference; (b) assumption; (c) agency; (d) veil-piercing or alter ego; (e) estoppel; and (f) third-party beneficiary.' " (*301 Suh, supra, 181 Cal.App.4th at p. 1513, 105 Cal.Rptr.3d 585 [quoting 2 Oehmke, Commercial Arbitration (3d ed. 2006 update) § 41.57 at pp. 41-195]; see 1 Oehmke, Commercial Arbitration (3d ed. Aug. 2017 update) § 8.1 [similar].)

(Jensen v. U-Haul

Co. of California (2017) 18 Cal.App.5th 295, 300-301 (Jensen).)

Defendant attaches

the Jaqueline Laus Declaration to its motion to argue that the Laus Declaration establishes that Rebeca provided verbal consent for Vahik to sign on behalf of Rebeca and bind Rebecca to the Arbitration Agreement. (Oppo., p. 5.)

Defendant attaches

the Laus Declaration to its motion, and Jaqueline Laus appears to have e-signed her declaration on 11/7/2024. (Laus Decl., p. 2.)

The Laus

Declaration contains four paragraphs, and it appears to be a form declaration that Laus filled in blanks with applicable responses. (See generally, Laus Decl.)

In summary,

paragraph 1 of the Laus Declaration

states that Laus is an employee of Glendale Post Acute Center (facility), that Laus works as an admission coordinator, and that Laus has held the position since 4/2024. (See Laus Decl., ¶ 1.) Laus states that she has personal knowledge of the facts contained herein, and if called to testify as a witness, she could and would do so competently. (See Laus Decl., ¶ 1.)

In summary of

paragraph 2 of the Laus Declaration, on or about 11/7/2024 at approximately 15:50, Laus met with Rebeca Minaeian (resident) and/or Vahik Minaiyan (resident's agent) to go over the admissions process. (See Laus Decl., ¶ 2.) Further, as part of the admissions process, the arbitration agreement was explained to the resident and/or resident's agent. (Id.) Additionally, the explanation was done in English by Laus (person who either spoke to the resident or the resident's agent).

In summary of

paragraph 3 of the Laus Declaration, it was explained that the arbitration agreement was not a precondition for the resident's admission to the facility. (See Laus Decl., ¶ 3.) The arbitration agreement was optional (Id.) It was further explained that in the event the resident or resident's agent elected to sign the arbitration agreement, the resident and/or resident's agent had 30 days within signature to rescind the agreement in writing. (Id.)

In summary of

paragraph 4 of the Laus Declaration, paragraph 4 contained 3 unchecked boxes.

The first

unchecked box stated that "The Resident AGREED to and signed the Arbitration Agreement; OR[.]" (See Laus Decl., ¶ 4.)

The second unchecked box stated, "The Resident was unable to sign himself/herself. The Resident authorized [blank] (name of the authorized agent) to sign the Agreement on his or her behalf. A copy of the Agent's Power of Attorney and/or Healthcare Directive was requested; OR[.]" (See Laus Decl., ¶ 4.)

With respect to the second unchecked box, not only was it unchecked, but nothing was filled in in the [blank] that preceded "(name of the authorized agent)[.]" (See Laus Decl., ¶ 4.)

The third box in paragraph 4 is unchecked; however, there are sections that are filled in, unlike the second unchecked box in which the [blank] was not filled in. (See Laus Decl., ¶ 4.)

The third unchecked box states, "The Resident instructed me to have Vahik Minaiyan (name), his or her son (relationship to Resident) to review the Agreement and determine whether or not to sign the Agreement. The Resident also authorized Vahik Minaiyan (name) to sign the Agreement on his or her behalf. I obtained the signed Agreement on 11-07-2024 (date); OR [.]" (See Laus Decl., ¶ 4.)

In the third unchecked box, "Vahik Minaiyan", "son", "Vahik Minaiyan", and "11-07-2024" were the sections that were filled in.

Further, the Laus Declaration indicates that the Declaration of Jaqueline Laus was done under penalty of perjury, that the foregoing is true and correct, and it was executed on 11-07-2024 at Glendale, California. (See Laus Decl., p. 2.)

The Court notes that the Jaqueline Laus declaration was only e-signed by Jaqueline Laus on 11/7/2024; no one else, nor any other party/entity, signed the Jaqueline Laus Declaration.

The Court also notes that Defendant's attorney, Jeffrey S. Healey, attaches a declaration to

Defendant's motion, but Healey does not explain any facts as to how/when/from whom Healey obtained the Laus Declaration. Healey only attests that he obtained the Arbitration Agreement from his client, Glendale, but Healey's declaration, and the motion itself, are silent as to any personal knowledge in obtaining the Laus Declaration. The Healey declaration doesn't even acknowledge the existence of the Laus Declaration. (See Healey Decl., ¶¶ 1-2.) Further, the Court notes that Defendant does not attach a post-11/7/2024 Laus declaration wherein Laus attests to the facts in her 11/7/2024 declaration. The only Laus declaration in the file is the Laus declaration from 11/7/2024.

Defendant argues

that the Laus Declaration establishes that Rebeca's alleged conduct establishes direct agency and ostensible agency for Vahik to act as Rebeca's agent.

In opposition,

Plaintiffs argue that Defendant fails to establish that Vahik had authority to waive Rebeca's rights to a jury trial.

Plaintiffs'

opposition argues that Defendant did not produce a durable power of attorney, conservatorship, advance health care directive, or any other written authorization authorizing Vahik Minaeian to execute an optional arbitration agreement on Rebeca's behalf.

The Court to hear

argument for the reasons explained below.

Although Defendant

cites to the Laus Declaration to argue that Rebeca provided verbal consent for Vahik to sign the Arbitration Agreement, and although Defendant cites to the Laus Declaration to argue that Rebeca created a direct agency and ostensible agency, Defendant does not explain in any clear or direct manner what the legal standard is to determine whether or not Vahik is Rebeca's direct or ostensible agent.

To support

Defendant's arguments that the Laus Declaration establishes that Rebeca authorized Vahik to act as her agent, Defendant first cites to CCP § 2299; however, it does not appear that CCP § 2299 exists. Since the Court cannot find CCP § 2299, Defendant is to address this issue at the hearing.

Further, to

support Defendant's argument that the Laus Declaration establishes that Vahik can act as Rebeca's agent, Defendant also cites to: (1) *Ermoian v. Desert Hospital* (2007) 152 Cal.App.4th 475, 502 [An Agency is actual when the agent is really employed by the principal]; (2) See also *Mejia v. Community Hosp. of San Bernardino* (2002) 99 Cal.App.4th 1448, 1456; and (3) *Flores v. Evergreen at San Diego, LLC*. (2007) 148 Cal.App.4th 581, 587-588 [Ostensible agency requires some intentional or negligent conduct on the principal's part creating a belief and reasonable reliance by third parties that an agency exists]. (See Def. Mot., p. 5-6.)

After Defendant

cited the aforementioned cases (See Def. Mot., p. 5-6.), Defendant concludes, with zero explanation as to the applicability of the aforementioned cases, that the alleged verbal consent provided by Rebeca as explained in the Laus Declaration meets the requirements "set forth above" to find the existence of an agency relationship for the purposes of finding the subject Arbitration Agreement to be valid and enforceable. (Def. Mot., p. 6, In., 5-8.)

Problematic with

Defendant's conclusion – that the alleged verbal consent by Rebeca in the Laus Declaration "meets the requirements set forth above to find the existence of an agency relationship for the purposes of finding the subject Agreement to be valid and enforceable" (Def. Mot., p. 6, In 5-8) – is that Defendant does not set forth any requirements in its motion, nor does Defendant's motion explain how the alleged verbal consent meets those alleged requirements, whatever those requirements may be.

Defendant cites to

Ermoian v. Desert Hospital (2007) 152 Cal.App.4th 475, 502 (*Ermoian*), and after Defendant cites to *Ermoian*, Defendant uses brackets to indicate that *Ermoian* stands for the proposition that an agency is actual when the agent is really employed by the principal. (Def. Mot., p. 5-6.)

The Court has no

idea why Defendant cites to and explains that *Ermoian* stands for the proposition that an agency is actual when the agent is really employed by the principal when here, Rebeca and Vahik's relationship has nothing to do with employment. Defendant's citation/argument with respect to *Ermoian* makes

no sense to this Court because the alleged agent, Vahik, is not employed, or even allegedly employed, by the alleged principal, Rebeca.

Further, the Court

has no idea why Defendant cites the portion of Ermoian that it cited when that portion cited stood for the proposition that in Ermoian the physicians/doctors were not employees or actual agents of a hospital for purposes of vicarious liability. (Ermoian v. Desert Hospital (2007) 152 Cal.App.4th 475, 502.) This case has nothing to do with physicians/doctors in relation to a hospital in the employment context. The instant case does not involve employment.

Defendant also

cites to Mejia v. Community Hosp. of San Bernardino (2002) 99 Cal.App.4th 1448, 1456 (Mejia). The Court is also unclear as to why Defendant cites to Mejia when the portion that Defendant cites in Mejia explains ostensible agency in the context of California law with respect to a radiologist and a hospital. The instant case has nothing to do with the hospital/physician agency relationship, and Defendant makes no explanation as to how there is ostensible agency here.

Defendant also

cites to Flores v. Evergreen at San Diego, LLC. (2007) 148 Cal.App.4th 581, 587-588 (Flores), and Defendant uses brackets to indicate that Flores stands for the proposition that ostensible agency requires some intentional or negligent conduct on the principal's part creating a belief and reasonable reliance by third parties that an agency exists. (Def. Mot., p. 6.)

After citing Flores,

Defendant provides no explanation as to how ostensible agency has been created here; Defendant simply concludes that Rebeca's alleged verbal consent meets the requirements to find the existence of an agency relationship.

The party seeking

arbitration bears the initial burden of demonstrating the existence of an arbitration agreement. (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236.)

Since moving

Defendant fails to explain how the Laus Declaration creates either a direct, or

ostensible, agency relationship between Rebeca and Vahik, and since Defendant bears the initial burden of demonstrating the existence of an arbitration agreement, the Court is considering DENYING Defendant's motion to compel arbitration with respect to Plaintiff/decedent/Rebeca's claims [the first, second and third causes of action] against Defendant.

The Court to hear
argument.

A. Existence of Agreement

as to Rebeca – First, Second, and Third Causes of Action- Theory to Compel?
Agency? – Opposition

Although the Court
previously mentioned how it is possible that it may find that Defendant fails to meet its initial burden in establishing the existence of an arbitration agreement with respect to Rebeca/decedent/Plaintiff's claims, due to the fact that Defendant fails to explain how the Laus Declaration establishes that Vahik has authority to sign the Arbitration Agreement as Rebeca's agent, the Court will address Plaintiffs' opposition because it calls to light many pertinent issues that could be implicated if, at the hearing, the Court instead decides that Defendant does in fact meet its initial burden in establishing that Vahik could sign the agreement for decedent/Rebeca as Rebeca's agent.

In opposition, Plaintiffs
assert many arguments without citing to legal authority to support their arguments.

For example,
Plaintiffs argues that "Defendants produced no durable power of attorney, conservatorship, advance health care directive, or any other written authorization authorizing Vahik Minaeian to execute an optional arbitration agreement on the Resident's behalf." (Pl. Oppo., p. 2.)

Problematic with
Plaintiffs' argument above is that Plaintiffs do not cite to any legal authority that explains that Defendant must produce a durable power of attorney, conservatorship, advance health care directive, or a written authorization authorizing Vahik Minaeian to execute an optional arbitration agreement on the Resident's behalf, in order for Defendant to meet its burden

in establishing that Vahik could act as Rebeca's agent and sign the Arbitration Agreement.

Further,
Plaintiffs' opposition argues that:

Defendants rely
solely upon the declaration of admissions coordinator Jacqueline Laus, who
simply states that the Resident "authorized" her son to sign.

The declaration
though never states:

1) the Resident's
exact words;

2) whether she
understood English;

3) whether an
interpreter was present;

4) whether she
understood arbitration;

5) whether she
understood she was waiving a jury trial;

6) whether she had
capacity;

7) whether she was
asked if she had given a power of attorney;

8) whether she
understood the distinction between admission paperwork and an optional
arbitration agreement.

(Pl. Oppo., p. 3.)

The Court fails to understand how Plaintiffs' argument above is availing when Plaintiffs do not cite to any legal authority stating that the declaration must state those things above in order for the Laus declaration to establish agency.

Further,
Plaintiffs' opposition argues:

The evidence demonstrates that the Resident suffered from cognitive impairment and solely spoke and understood Armenian and Farsi only. (see Declaration of Vahik Minayian). The arbitration agreement was presented though entirely in English.

Defendants present no evidence that any interpreter was provided, that the agreement was translated into Farsi and / or Armenian, or that the Resident understood the legal significance of arbitration. Likewise, there is no evidence that the Resident knowingly authorized another person to waive her constitutional rights.

These circumstances further demonstrate that Defendants have failed to establish a knowing and voluntary agreement.

(Pl. Oppo., p. 3-4.)

Again, Plaintiffs fail to cite to legal authority that explains why their arguments above are legally relevant.

Plaintiffs' opposition also argues:

The Laus declaration consists largely of legal conclusions rather than admissible facts. It fails to identify:

1) the words allegedly spoken by the Resident;

- 2) the Resident's level of comprehension;
- 3) whether the Resident understood arbitration;
- 4) how authorization was communicated;
- 5) whether language barriers existed; or
- 6) any specific facts demonstrating informed consent.

California courts repeatedly reject boilerplate declarations containing only conclusory assertions of agency. (*Tahmasebi v. Gordon Lane Healthcare, LLC* (2019) 33 Cal.App.5th 595, 603-607.)

(Pl. Oppo., p. 4.)

Again, Plaintiffs fail to cite to legal authority that explains that the Laus Declaration must identify the things that Plaintiffs argue the Laus Declaration fails to identify. Further, the Court could not find the *Tahmasebi* case that Plaintiffs cite.

Additionally, Plaintiffs' opposition argues that because Rebeca never signed the Arbitration Agreement, Defendant cannot establish mutual assent absent legally competent proof of agency. (Pl. Oppo., p. 2.)

Problematic here is that Plaintiffs' argument (Pl. Oppo., p. .2.) does not cite to legal authority describing what legally competent proof of agency is.

The Court notes that Plaintiffs' opposition also cites to the cases of: (1) *Flores v. Evergreen at San Diego, LLC* (2007) 148 Cal.App.4th 581 (*Flores*); (2)

Harrod v. Country Oaks Partners, LLC (2024) 15 Cal.5th 939 (Harrod);
(3) Goldman v. Sunbridge Healthcare, LLC (2013) 220 Cal.App.4th 1160 (Goldman);
and (4) Pagarigan v. Libby Care Center, Inc. (2002) 99 Cal.App.4th 298 (Pagarigan)
to argue that Defendant failed to establish that Vahik had authority to waive
Rebeca's right to a jury trial.

Problematic with

Plaintiffs' citations to the aforementioned cases is that the Court is not
entirely clear how those cases, in the instant context, support Plaintiffs'
argument that the Laus Declaration fails to establish actual or ostensible
agency.

The Court fails to

see how Plaintiffs' citation to Harrod supports Plaintiffs'
opposition arguments in the instant context.

In Harrod,

Charles Logan (Logan) executed a power of attorney for health care, and Logan
used not the statutory form, but a California Medical Association form
patterned on, and specifically citing to, the Health Care Decisions Law. (Harrod
v. Country Oaks Partners, LLC (2024) 15 Cal.5th 939, 947.) Logan appointed
his nephew, Mark Harrod as his "health care agent" to make "health care
decisions" should Logan's primary physician find Logan unable to make those
decisions himself. (Id.)

Two years after

Logan executed his power of attorney, he entered the Country Oaks Care Center
(Country Oaks), a skilled nursing facility, and Harrod signed two agreements
with the facility on Logan's behalf – the first was an admission agreement and
the second agreement Harrod signed was an arbitration agreement. (Harrod v.
Country Oaks Partners, LLC (2024) 15 Cal.5th 939, 948.) Based on the care
Logan received during his stay at Country Oaks, Logan, with Harrod acting as
his guardian ad litem, filed a lawsuit against the facility's owners and
operators for negligence, elder abuse, violations of his right as a resident of
a skilled nursing facility, and declaratory relief asking that Logan was not
bound by the arbitration agreement that his health care agent, Harrod, had
signed. (Harrod v. Country Oaks Partners, LLC (2024) 15 Cal.5th 939,
949.)

In Harrod,

the Supreme Court of California held that the execution of the arbitration agreement by Harrod was not a health care decision within Logan's Power of attorney, in light of the Health Care Decisions Law and the Probate Code, and thus the facility's owners and operators could not rely on the agent's (Harrod) execution of the arbitration agreement to compel arbitration of claims arising from the principal's (Logan) alleged maltreatment. (Harrod v. Country Oaks Partners, LLC (2024) 15 Cal.5th 939, 964.)

Problematic here
is that Harrod does not appear to be applicable in the instant context
for several reasons.

First, Harrod was
decided in the context of a power of attorney wherein Logan (principal)
executed a power of attorney, before entering the facility, appointing his
nephew, Mark Harrod, as his health care agent. (Harrod v. Country Oaks
Partners, LLC (2024) 15 Cal.5th 939, 947.)

Here, neither
moving Defendant, nor Plaintiffs' opposition, argues that a Power of Attorney
was executed by Plaintiff/decedent/Rebeca.

In fact, in paragraph
4 of the Laus declaration, the second box is both unchecked and unfilled, and
that box is the box that mentions whether or not a copy of the agent's power of
attorney and/or healthcare directive was requested. Since this box went
unchecked and unfilled, and since neither party argues that a power of attorney
was executed, Harrod is not directly applicable to the instant case.

Second, Harrod does
not appear to address Defendant's moving argument – that the Laus Declaration
can compel arbitration under the theories of direct or ostensible agency. Or to
phrase it differently, Harrod did not address the issue of what can be
considered direct or ostensible agency when there is no power of
attorney/health care directive.

Plaintiffs'
opposition also appears to cite to Flores v. Evergreen at San Diego, LLC (2007)
148 Cal.App.4th 581 and Pagarigan v. Libby Care Center, Inc. (2002) 99
Cal.App.4th 298 to argue that agency cannot be created by the statements or

conduct of the purported agent, and that it must arise from the conduct of the principal.

When examining Flores and Pagarigan in the context of the Laus Declaration, the Court fails to understand how Plaintiffs' opposition is on point.

In Flores, Josephine

Flores was suffering from dementia and other ailments, and she was admitted to Evergreen's skilled nursing facility. (Flores v. Evergreen at San Diego, LLC (2007) 148 Cal.App.4th 581, 585.) As part of the admissions process, Luis Flores, Josephine's husband, signed two arbitration agreements, and at the time Luis signed the arbitration agreements he did not have a power of attorney to act for Josephina, nor had he been declared her conservator or guardian. (Id.)

In Flores,

the Court of Appeal explained that although Luis signed the arbitration agreements, there was no written instrument, such as a power of attorney, authorizing Luis to act as Josephine's agent. (Flores v. Evergreen at San Diego, LLC (2007) 148 Cal.App.4th 581, 587.)

Since there was no

written instrument conferring agency power upon Luis, the Court of Appeal explained when an agency relationship may arise by oral consent or implication from the conduct of the parties. (Flores v. Evergreen at San Diego, LLC (2007) 148 Cal.App.4th 581, 587.)

As explained in Flores:

Even when there is

no written agency authorization, an agency relationship may arise by oral consent or by implication from the conduct of the parties. (Van't Rood v. County of Santa Clara (2003) 113 Cal.App.4th 549, 571, 6 Cal.Rptr.3d 746.) However, an agency cannot be created by the *588 conduct of the agent alone; rather, conduct by the principal is essential to create the agency. Agency "can be established either by agreement between the agent and the principal, that is, a true agency [citation], or it can be founded on ostensible authority, that is, some intentional conduct or neglect on the part of the alleged principal creating a belief in the minds of third persons that an agency exists, and a

reasonable reliance thereon by such third persons.” (Lovetro v. Steers (1965) 234 Cal.App.2d 461, 474–475, 44 Cal.Rptr. 604; Civ.Code, §§ 2298, 2300.) “ ‘ “The principal must in some manner indicate that the agent is to act for him, and the agent must act or agree to act on his behalf and subject to his control.”...’ [Citations.] Thus, the ‘formation of an agency relationship is a bilateral matter. Words or conduct by both principal and agent are necessary to create the relationship’ ” (Van’t Rood, supra, 113 Cal.App.4th at p. 571, 6 Cal.Rptr.3d 746, italics added.)

(Flores v. Evergreen at San Diego, LLC (2007) 148 Cal.App.4th 581, 587-588.)

When Evergreen

(the skilled nursing facility) sought to compel arbitration based on Luis’s signature on the arbitration agreements, the Court of Appeal found that although Evergreen presented evidence regarding Luis’s [the agent] conduct, Evergreen failed to offer evidence regarding Josephina’s [the principal’s] conduct. (Flores v. Evergreen at San Diego, LLC (2007) 148 Cal.App.4th 581, 588.)

The Court of

Appeal explained that the record was completely silent regarding Josephina’s and Luis’s dealings prior to her admission and/or their interactions at the time of her admission. (Flores v. Evergreen at San Diego, LLC (2007) 148 Cal.App.4th 581, 588.) The Court of Appeal explained that the mere fact that Luis signed the arbitration agreements was insufficient. (Id.)

Thus, the Court of

Appeal concluded that even though Evergreen presented evidence showing that Luis acted as if he were Josephina’s agent, the establishment of agency required conduct on the part of Josephina conferring that status.(Flores v. Evergreen at San Diego, LLC (2007) 148 Cal.App.4th 581, 589.) Therefore, since the record was devoid of any such evidence of Josephina’s express or implied consent to have her husband act as her agent, the Court of Appeal found that Evergreen’s petition to compel arbitration was properly denied. (Id.)

Here, if the Court

is to find the Laus Declaration to be credible, it does not appear that the Laus Declaration is based on conduct of the agent [here Vahik] alone. Here, the Laus Declaration appears to explain conduct on both the part of the principal

[Rebeca] and agent [Vahik] that would create a belief in the minds of third persons that an agency exists.

In summary of paragraph 2 of the Laus Declaration, on or about 11/7/2024 at approximately 15:50, Laus met with Rebeca Minaeian (resident) and/or Vahik Minaiyan (resident's agent) to go over the admissions process. (See Laus Decl., ¶ 2.) Further, as part of the admissions process, the arbitration agreement was explained to the resident and/or resident's agent. (Id.) Additionally, the explanation was done in English by Laus (person who either spoke to the resident or the resident's agent).

In summary of paragraph 4 of the Laus Declaration, paragraph 4 contained 3 unchecked boxes.

Not only were the first two boxes unchecked, but nothing was filled in within the blank sections of the relevant statements for the first two unchecked boxes.

However, although the third box in paragraph 4 of the Laus Declaration is unchecked; there are sections that are filled in, unlike the second unchecked box in which the [blank] was not filled in. (See Laus Decl., ¶ 4.)

The third unchecked box was filled in to state, "The Resident instructed me to have Vahik Minaiyan (name), his or her son (relationship to Resident) to review the Agreement and determine whether or not to sign the Agreement. The Resident also authorized Vahik Minaiyan (name) to sign the Agreement on his or her behalf. I obtained the signed Agreement on 11-07-2024 (date); OR [.] (See Laus Decl., ¶ 4.)

In the third unchecked box, "Vahik Minaiyan", "son", "Vahik Minaiyan", and "11-07-2024" were the sections that were filled in.

Thus, if the Laus Declaration is accepted as credible, it appears that the Laus Declaration provides evidence of conduct of the principal [Rebeca] conferring authority upon the agent [Vahik] and the agent acting by signing the Arbitration

Agreement.

Further, to the extent that Plaintiffs' opposition cites to *Pagarigan v. Libby Care Center, Inc.* (2002) 99 Cal.App.4th 298 to argue that agency cannot be created by the statements or conduct of the purported agent, and that it must arise from the conduct of the principal, the Court finds that citation unavailing for the same reasons it explained with respect to *Flores*.

Likewise, Plaintiffs' citation in opposition to *Goldman v. Sunbridge Healthcare, LLC* (2013) 220 Cal.App.4th 1160 is inapposite because that case involved a VA advance directive: Durable Power of Attorney for Health Care and Living Will, which appointed someone as a health care agent, and those facts are not applicable in the instant scenario.

A. Existence of Agreement as to Rebeca – First, Second, and Third Causes of Action- Theory to Compel? Agency? – Continued

Under *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951:

The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. (*Ibid.*) In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination. (*Id.* at pp. 413–414, 58 Cal.Rptr.2d 875, 926 P.2d 1061.) No jury trial is available for a petition to compel arbitration. (*Id.* at p. 413, 58 Cal.Rptr.2d 875, 926 P.2d 1061.)

(*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.)

Here, if Defendant's moving papers successfully establish that the Laus Declaration

demonstrates either direct or ostensible authority for Vahik to act as Rebeca's agent, since Vahik is the only one that signed the Arbitration Agreement, then it appears that the Court will need to determine if the opposition papers [opposition itself; Vahik Declaration; Evidentiary Objections to Declaration of Jaqueline Laus; and the Declaration of Steven C. Peck] successfully establishes, by a preponderance of the evidence, any facts necessary to establish a defense to compelling arbitration.

Likewise, it appears that Court will need to assess if the Reply successfully casts doubt on the credibility of the Vahik Declaration that is submitted in opposition.

In relevant part of the Vahik Declaration in opposition, Vahik explains that the Laus Declaration is inaccurate. (Vahik Decl., ¶ 3.)

Vahik explains that on October 31, 2024, his mother was admitted to Glendale Post Acute Center. (Vahik Decl., ¶ 4.)

Vahik also explains that at no time before or during his mother's admission did his mother verbally or in writing authorize him to execute an arbitration agreement on her behalf. (Vahik Decl., ¶ 7.) Further, Vahik states that his mother never instructed him to waive her constitutional right to a jury trial or to enter into any arbitration agreement for her. (Id.)

Vahik also explains that on October 31, 2024, he did not "possess a Durable Power of Attorney, Advance Health Care Directive, conservatorship, guardianship, or any other legal authority authorizing me to execute contracts or arbitration agreements on my mother's behalf." (Vahik Decl., ¶ 8.)

Further, Vahik explains that "I never represented to anyone at Glendale Post Acute that I had authority to bind my mother to an arbitration agreement. No employee of Glendale Post Acute ever requested that I provide a Power of Attorney, Advance Health Care Directive, conservatorship papers, or any other document demonstrating legal authority. (Vahik Decl., ¶ 9.)

Additionally, the
Vahik Declaration states in relevant part that:

10. I have read

Ms. Laus's statement that my mother instructed her to have me review and sign the Arbitration Agreement on my mother's behalf. That statement is completely false. My mother never made any such statement in my presence, and no such conversation ever occurred.

11. My mother

never instructed me to sign the Arbitration Agreement, never gave me permission to do so, and never authorized me to act as her agent for purposes of entering into an arbitration agreement.

12. No one at

Glendale Post Acute explained to me that an arbitration agreement was optional or that my mother's admission was not conditioned upon signing it. No one asked whether I had legal authority to sign on behalf of my mother before presenting the document for signature.

(Vahik Decl., ¶¶
10-12.)

The reply argues
that the Vahik Declaration submitted in opposition lacks credibility and fails to undermine the Laus Declaration.

In particular,

Defendant's reply argues that the Vahik Declaration strains credibility because Vahik states that his mother was admitted to the facility on October 31, 2024; however, Defendant's reply argues that the Arbitration Agreement was executed on 11/7/2024.

The Court will
hear argument as to this alleged discrepancy between the dates of 11/7/2024 and October 31, 2024.

Further, the Court

does not fully understand the Reply's argument that asserts that Vahik's statement that his mother never gave him permission to act as her agent is

lacking in foundation because the Vahik Declaration fails to state that Vahik was present on 11/7/2024. The Court to hear argument.

Additionally, at the hearing, the Court will hear argument from Plaintiffs as to how the Steven C. Peck declaration submitted in opposition argues that Rebeca lacked the requisite mental capacity to understand and knowingly waive her right to a jury trial. The Court will hear argument on the opposition's argument that Rebeca lacked mental capacity because Plaintiffs' opposition itself does not actually argue, with citation to legal authority, that Rebeca lacked mental capacity. Additionally, to the extent that the Steven C. Beck declaration [submitted in opposition] argues that Rebeca lacked mental capacity, Beck does not explain in any clear manner as to what the legal standard is to determine whether or not a party has established that someone lacks mental capacity. The Court to hear argument on Beck's argument about mental capacity; however, the Court is inclined to find this argument unavailing because the opposition does not explain this argument with any clarity with respect to whatever the appropriate legal standard is and how Plaintiffs satisfied it.

Likewise, at the hearing, Plaintiffs are to explain their evidentiary objections to the Jaqueline Laus Declaration.

The Court notes that as stated in Condee:

For purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of document authentication. "[T]he court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an *219 agreement to arbitrate the controversy exists...." (§ 1281.2) The statute does not require the petitioner to introduce the agreement into evidence. A plain reading of the statute indicates that as a preliminary matter the court is only required to make a finding of the agreement's existence, not an evidentiary determination of its validity.

(Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 218-19.)

Overall, if Defendant establishes, by a preponderance of evidence, that an agreement to arbitrate exists, i.e., the Defendant

demonstrates that the Laus Declaration establishes that Rebeca/decedent/Plaintiff authorized Plaintiff/representative/Vahik to sign the Arbitration Agreement on Rebeca's behalf, then the burden switches to Plaintiffs/opposition to establish, by a preponderance of evidence, facts necessary to their defense.

Once the Court concludes an arbitration agreement exists, it must then consider whether the agreement covers the claims at issue. (Omar v. Ralphs Grocery (2004) 118 Cal.App.4th 966, 960.)

Here, with respect to the first three causes of action brought by Plaintiff, Rebeca, the Arbitration Agreement sufficiently covers those claims. Further, Plaintiffs' opposition does not argue that the first three causes of action are not covered by the arbitration agreement.

The Court to hear argument with respect to the first, second, and third causes of action as explained above.

B. Existence And Scope of Agreement as to Plaintiff, Vahik Minayian, Individually – Fourth Cause of Action

The fourth cause of action for wrongful death is brought by Plaintiff, Vahik Minayian, individually.

The Arbitration Agreement attached to Defendant's motion indicates in relevant part:

Article 4. This Agreement shall be binding for any and all disputes arising out of the Resident's residency at the Facility, except for disputes pertaining to collections or evictions. This Agreement is binding on all parties, including the Resident's representatives, executors, family members, and heirs who bring any claims individually or in a representative capacity. The Resident's representatives, agents, executors, family members, successors in interest and heirs who execute this Agreement below on the signature line are doing so not only in their representative capacity for the Resident, but also in their individual capacity and thus agree that any claims brought individually by any such representatives, agents, executors, family members, representatives, successors in interest and heirs are subject to binding arbitration. This Agreement may be rescinded by written notice within thirty (30) days of signature.

(Def. Mot., Ex. A, Art. 4.)

Vahik e-signed

(two times in two locations within the Arbitration Agreement) above a signature line that states, "Signature on behalf of the Resident and as an Individual[.]" (Def. Mot., Ex. A, p. 2.) The Arbitration Agreement indicates that Vahik e-signed both times on 11/7/2024. (Id.)

The Arbitration

Agreement successfully establishes, by a preponderance of the evidence, that an arbitration agreement exists as between Defendant and Plaintiff, Vahik, with respect to the fourth cause of action for wrongful death [which is brought by Vahik individually] based on the e-signatures of Vahik and based on the scope of the arbitration agreement. Further, the Court notes that the Article 4 of the Arbitration Agreement indicates that it is binding on the Resident's representatives who bring any claims individually or in a representative capacity. Additionally, Article 4 of the Arbitration Agreement provides that "The Resident's representatives, agents, executors, family members, successors in interest and heirs who execute this Agreement below on the signature line are doing so not only in their representative capacity for the Resident, but also in their individual capacity and thus agree that any claims brought individually by any such representatives, agents, executors, family members, representatives, successors in interest and heirs are subject to binding arbitration." (Def. Mot., Ex. A, Art. 4.)

In opposition, Plaintiffs argue that Vahik is not bound individually to the Arbitration Agreement.

The Court does not find Plaintiffs' opposition availing.

Plaintiffs argue that the wrongful death claims belong to the heirs, not the decedent.

The Court fails to see how Plaintiffs' argument above is relevant because the fourth cause of action for wrongful death appears as if it is only being brought by Vahik, individually, and not the decedent, Rebeca.

Further, Plaintiffs' opposition argues that merely signing an arbitration agreement in connection with a relative's admission does

not automatically waive the signer's own independent wrongful death rights absent clear and knowing individual consent.

Here, Vahik's two e-signatures on the Arbitration Agreement, Article 4 in the Arbitration Agreement, and the signature lines demonstrate clear and knowing individual consent.

"It is well established, in the absence of fraud, overreaching or excusable neglect, that one who signs an instrument may not avoid the impact of its terms on the ground that he failed to read the instrument before signing it." (Randas v. YMCA of Metropolitan Los Angeles (1993) 17 Cal.App.4th 158, 163 quoting Hulse v. Elsinore Parachute Center (1985) 168 Cal.App.3d 333, 339.)

Further, the Vahik Declaration in opposition states, "I signed documents presented to me only in my capacity as my mother's son and to assist with the admissions process. I did not intend to bind my mother to an arbitration agreement, and I understood that I lacked legal authority to do so." (Vahik Decl., ¶ 14.)

Since Vahik concedes that he signed the documents, and since one who signs an instrument may not avoid the impact of its terms on the ground that he failed to read the instrument before signing it, the Court does not find Plaintiffs' argument, that Vahik is not bound individually, to be availing.

Further, Plaintiffs' opposition cites to Holland v. Silverscreen Healthcare, Inc. (2025) 18 Cal.5th 364 to argue that a wrongful death claimant cannot be compelled to arbitrate when the gravamen of the complaint is in elder abuse.

Here, the Court fails to understand Plaintiffs' opposition with respect to Holland. First, Plaintiffs do not cite a specific page within the Holland case. Upon reading Holland, the Court is not entirely clear why Plaintiffs are stating that this case is relevant here.

With respect to the fourth cause of action, brought by Vahik, individually, the Court is inclined to GRANT Defendant's motion to compel arbitration with respect to the cause of action for Plaintiff, Vahik's cause of action for wrongful death.

Defendant appears to satisfy its initial burden demonstrating the existence and scope of the arbitration agreement with respect to the fourth cause of action, and Plaintiffs' opposition does not appear to successfully rebut any of Defendant's arguments.